



Manage contractual agreements/commitments

D2.TFA.CL7.04

Assessor Manual



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Assessor Manual

Project Base

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Competency Based Assessment (CBA) – An Introduction for Assessors

Assessment is the process of identifying a participant's current knowledge, skills and attitudes sets against all elements of competency within a unit of competency.

Suggested Assessment Methods

For each unit of competency a number of assessment tools have been identified including:

- Work Projects
- Oral Questions
- Written Questions
- Third Party Statements
- Observation Checklists.

Instructions and Evidence Recording Sheets have been identified in this Assessment Manual for use by Assessors.

Alternative Assessment Methods

Whilst the above mentioned assessment methods are suggested assessment methods, the assessor may use an alternate method of assessment taking into account:

- a) The nature of the unit
- b) The strengths of participants
- c) The number of participants in the class
- d) Time required to complete assessments
- e) Time dedicated to assessment
- f) Equipment and resources required.

Alternate assessment methods include:

- Practical demonstrations
- Practical demonstrations in simulated work conditions
- Problem solving
- Portfolios of evidence
- Critical incident reports
- Journals
- Oral presentations
- Interviews
- Videos
- Visuals/slides/audiotapes

- Case studies
- Log books
- Projects and Role plays
- Group projects
- Recognition of Prior Learning.

Whilst there is no specific instruction or evidence collection documents for all the alternative assessment methods, assessors can record competency in the 'Other' section within the 'Competency Recording Sheet'.

Selection of Assessment Methods

Each assessor will determine the combination of Assessment Methods to be used to determine Competency for each Competency Unit on a student by student basis.

'Sufficient' evidence to support the 'Pass Competent'/'Not Yet Competent' decision must be captured.

In practice this means a minimum of 2 – 3 Assessment Methods for each candidate for each Competency Element is suggested.

At least one method should provide evidence of practical demonstration of competence.

The following assessment methods deemed to provide evidence of practical demonstration of competence include:

- Practical Work Projects
- Third Party Statement
- Observation Checklist.

Assessing Competency

Competency based assessment does not award grades, but simply identifies if the participant has the knowledge, skills and attitudes to undertake the required task to the specified standard.

Therefore, when assessing competency, an assessor has two possible results that can be awarded:

- 'Pass Competent' (PC)
- 'Not Yet Competent' (NYC).

Pass Competent (PC)

If the participant is able to successfully answer or demonstrate what is required, to the expected standards of the performance criteria, they will be deemed as 'Pass Competent' (PC).

The assessor will award a 'Pass Competent' (PC) if they feel the participant has the necessary knowledge, skills and attitudes in all assessment tasks for a unit.

Not Yet Competent' (NYC)

If the participant is unable to answer or demonstrate competency to the desired standard, they will be deemed to be 'Not Yet Competent' (NYC).

This does not mean the participant will need to complete all the assessment tasks again. The focus will be on the specific assessment tasks that were not performed to the expected standards.

The participant may be required to:

- a) Undertake further training or instruction
- b) Undertake the assessment task again until they are deemed to be 'Pass Competent'.

Regional Qualifications Framework and Skills Recognition System

The 'Regional Qualifications Framework and Skills Recognition System', also known as the 'RQFSRS' is the overriding educational framework for the ASEAN region.

The purpose of this framework is to provide:

- A standardised teaching and assessment framework
- Mutual recognition of participant achievement across the ASEAN region. This includes achievement in individual Units of Competency or qualifications as a whole.

The role of the 'RQFSRS' is to provide, ensure and maintain 'quality assurance' across all countries and educational providers across the ASEAN region

Recognition of Prior Learning (RPL)

Recognition of Prior Learning is the process that gives current industry professionals who do not have a formal qualification, the opportunity to benchmark their extensive skills and experience against the standards set out in each unit of competency/subject.

This process is a learning and assessment pathway which encompasses:

- Recognition of Current Competencies (RCC)
- Skills auditing
- Gap analysis and training
- Credit transfer.

Code of Practice for Assessors

This Code of Practice provides:

- Assessors with direction on the standard of practice expected of them
- Candidates with assurance of the standards of practice expected of assessors
- Employers with assurance of the standards maintained in the conduct of assessment.

The Code detailed below is based on the International Code of Ethics and Practice (The National Council for Measurement in Education [NCME]):

- The differing needs and requirements of the person being assessed, the local enterprise and/or industry are identified and handled with sensitivity
- Potential forms of conflict of interest in the assessment process and/or outcomes are identified and appropriate referrals are made, if necessary
- All forms of harassment are avoided throughout the planning, conducting, reviewing and reporting of the assessment outcomes

- The rights of the candidate are protected during and after the assessment
- Personal and interpersonal factors that are not relevant to the assessment of competency must not influence the assessment outcomes
- The candidate is made aware of rights and process of appeal
- Evidence that is gathered during the assessment is verified for validity, reliability, authenticity, sufficiency and currency
- Assessment decisions are based on available evidence that can be produced and verified by another assessor
- Assessments are conducted within the boundaries of the assessment system policies and procedures
- Formal agreement is obtained from both the candidate and the assessor that the assessment was carried out in accordance with agreed procedures
- The candidate is informed of all assessment reporting processes prior to the assessment
- The candidate is informed of all known potential consequences of decisions arising from an assessment, prior to the assessment
- Confidentiality is maintained regarding assessment results
- The assessment results are used consistently with the purposes explained to the candidate
- Opportunities are created for technical assistance in planning, conducting and reviewing assessment procedures and outcomes.

Instructions and Checklist for Assessors

Instructions

General instructions for the assessment:

- Assessment should be conducted at a scheduled time that has been notified to the candidate
- Facilitators must ensure participants are made aware of the need to complete assessments and attend assessment sessions
- If a participant is unable to attend a scheduled session, they must make arrangements with the Assessor to undertake the assessment at an alternative time
- At the end of the assessment the Assessor must give feedback and advise the participant on their PC/NYC status
- Complete the relevant documentation and submit to the appropriate department.

Preparation

- Gain familiarity with the Unit of Competency, Elements of Competency and the Performance Criteria expected
- Study details assessment documentation and requirements
- Brief candidate regarding all assessment criteria and requirements.

Briefing Checklist

- Begin the assessment by implementing the following checklist and then invite the candidate to proceed with assessment.

Checklist for Assessors

Prior to the assessment I have:	Tick (✓)	Remarks
Ensured the candidate is informed about the venue and schedule of assessment.		
Received current copies of the performance criteria to be assessed, assessment plan, evidence gathering plan, assessment checklist, appeal form and the company's standard operating procedures (SOP).		
Reviewed the performance criteria and evidence plan to ensure I clearly understood the instructions and the requirements of the assessment process.		
Identified and accommodated any special needs of the candidate.		
Checked the set-up and resources for the assessment.		
During the assessment I have:		
Introduced myself and confirmed identities of candidates.		
Put candidates at ease by being friendly and helpful.		
Explained to candidates the purpose, context and benefits of the assessment.		
Ensured candidates understood the assessment process and all attendant procedures.		
Provided candidates with an overview of performance criteria to be assessed.		
Explained the results reporting procedure.		
Encouraged candidates to seek clarifications if in doubt.		
Asked candidates for feedback on the assessment.		
Explained legal, safety and ethical issues, if applicable.		
After the assessment I have:		
Ensured candidate is given constructive feedback.		
Completed and signed the assessment record.		
Thanked candidate for participating in the assessment.		

Instructions for Recording Competency

Specifications for Recording Competency

The following specifications apply to the preparation of Evidence Gathering Plans:

- A Competency Recording Sheet must be prepared for each candidate to ensure and demonstrate all Performance Criteria and Competency Elements are appropriately assessed. This Sheet indicates how the Assessor will gather evidence during their assessment of each candidate
- This Competency Recording Sheet is located at the end of the Assessment Plan
- It is the overriding document to record competency
- The Assessor may vary the Competency Recording Sheet to accommodate practical and individual candidate and/or workplace needs
- Assessor must place a tick (✓) in the 'Assessment Method' columns to identify the methods of assessment to be used for each candidate
- Multiple Competency Elements/Performance Criteria may be assessed at the one time, where appropriate
- The assessor and participant should sign and date the Competency Recording Sheet, when all forms of evidence and assessment have been completed
- The assessor may provide and feedback or clarify questions which the participant may have in regards to the assessment grade or findings
- All documents used to capture evidence must be retained, and attached to the Competency Recording Sheet for each candidate for each Competency Unit.

Instructions for Different Assessment Methods

Specifications for Work Project Assessment

These guidelines concern the use of work projects.

The work projects identified in the Training Manuals involve a range of tasks, to be performed at the discretion of the Assessor.

Work project tasks can be completed through any form of assessment as identified in the Trainer and Trainee Manuals and stated at the start of this section.

Assessors should follow these guidelines:

- Review the Work Projects at the end of each 'Element of Competency' in the Trainee Manual to ensure you understand the content and what is expected
- Prepare sufficient resources for the completion of work activities including:
 - Time – whether in scheduled delivery hours or suggested time participants to spend outside of class hours
 - Resources – this may involve technical equipment, computer, internet access, stationery and other supplementary materials and documents
- Prepare assessment location (if done in class) making it conducive to assessment
- Explain Work Projects assessment to candidate, at the start of each Element of Competency. This ensures that participants are aware of what is expected and can collate information as delivery takes place

- Assessors can use the following phrase as a guide (where an 'X' is identified, please input appropriate information):
 "At the end of each Element of Competency there are Work Projects which must be completed. These projects require different tasks that must be completed.
 These work projects are part of the formal assessment for the unit of competency titled X:
- You are required to complete these activities:
 - Using the 'X' method of assessment*
 - At 'X' location*
 - You will have 'X time period' for this assessment*
 - You are required to compile information in a format that you feel is appropriate to the assessment
 - Do you have any questions about this assessment?"
- Commence Work Project assessment:
 - The assessor may give time for participants to review the questions at this time to ensure they understand the nature of the questions. The assessor may need to clarify questions
 - Participants complete work projects in the most appropriate format
 - Participants must submit Work Project evidence to the assessor before the scheduled due date
- Assessor must assess the participant's evidence against the competency standards specified in each Element of Competency and their own understanding. The assessor can determine if the participant has provided evidence to a 'competent' standard
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Oral Question Assessment

These guidelines concern the use of oral questioning.

Assessors should follow these guidelines.

- Prepare Assessment Record for Oral Questioning. One record for each candidate:
 - Enter Student name
 - Enter Assessor name
 - Enter Location
- Familiarise self with Questions to be asked
- Prepare assessment location (table and chairs) making it conducive to assessment
- Explain Oral Questioning assessment to candidate, using the following phrase as a guide (where a 'X' is identified, please input appropriate information):
"These oral questions are part of the formal assessment for the unit of competency titled X.

There are X questions and you are required to answer all of them to the best of your ability and I will record whether or not you have answered correctly.

We have 60 minutes for this assessment.

- I will give you feedback at the end of the assessment
- Do you have any questions about this assessment?"
- Commence Oral Questioning assessment:
 - Complete Assessment Record for the Oral Questioning by:
 - a) Ticking PC or NYC, as appropriate
 - b) Entering 'Remarks' as required
 - c) Completing Oral Questioning within 60 minutes
- Complete Oral Questioning and provide feedback to candidate
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Written Question Assessment

These guidelines concern the use of written questioning.

Assessors should follow these guidelines:

- Familiarise self with Questions and Answers provided
- Print and distribute copies of 'Written Questions' for participants. Ideally this should take place with adequate time for participants to answer all questions before the expected due date
- Explain Written Questioning assessment to candidate, using the following phrase as a guide (where a 'X' is identified, please input appropriate information):

"These written questions are part of the formal assessment for the unit of competency titled X.

There are X questions and you are required to answer all of them to the best of your ability.

You may refer to your subject materials, however where possible try to utilise your existing knowledge when answering questions.

Where you are unsure of questions, please ask the Assessor for further instruction. This may be answering the question orally or asking the assessor to redefine the question.

We have X time for this assessment:

- The due date for completion of this assessment is X
- On this date you must forward the completed questions to the assessor by X time on the date of X
- Do you have any questions about this assessment?"
- The assessor may give time for participants to review the questions at this time to ensure they understand the nature of the questions. The assessor may need to clarify questions
- Participants may record written answers (where possible)
- Participants must submit the written answers to the assessor before the scheduled due date

- Assessor must assess the participant's written answers against the model answers provided as a guide, or their own understanding. The assessor can determine if the participant has answered the questions to a 'competent' standard
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Observation Checklist

These specifications apply to the use of the Observation Checklist in determining competency for candidates.

Only an approved assessor is authorised to complete the Observation Checklist.

The assessor is required to observe the participant, ideally in a simulated environment or their practical workplace setting and record their performance (or otherwise) of the competencies listed on the Observation Checklist for the Competency Unit.

To complete the Observation Checklist the Assessor must:

- Insert name of candidate
- Insert assessor name
- Insert identify of location where observations are being undertaken
- Insert date/s of observations – may be single date or multiple dates
- Place a tick in either the 'Yes' or 'No' box for each listed Performance Criteria to indicate the candidate has demonstrated/not demonstrated that skill
- Provide written (and verbal) feedback to candidate – as/if appropriate
- Sign and date the form
- Present form to candidate for them to sign and date
- Transcribe results/details to Competency Recording Sheet for candidate
- Forward/file Observation Checklist.

This source of evidence combines with other forms of assessment to assist in determining the 'Pass Competent' or 'Not Yet Competent' decision for the participant.

Specifications for Third Party Statement

These specifications relate to the use of a relevant workplace person to assist in determining competency for candidates.

The Third Party Statement is to be supplied by the assessor to a person in the workplace who supervises and/or works closely with the participant.

This may be their Supervisor, the venue manager, the Department Manager or similar.

The Third Party Statement asks the Supervisor to record what they believe to be the competencies of the participant based on their workplace experience of the participant. This experience may be gained through observation of their workplace performance, feedback from others, inspection of candidate's work etc.

A meeting must take place between the Assessor and the Third Party to explain and demonstrate the use of the Third Party Statement.

To complete the Third Party Verification Statement the Assessor must:

- Insert candidate name
- Insert name and contact details of the Third Party
- Tick the box to indicate the relationship of the Third Party to the candidate
- Present the partially completed form to the Third Party for them to finalise
- Collect the completed form from the Third Party
- Transcribe results/details to Competency Recording Sheet for candidate
- Forward/file Third Party Statement.

The Third Party must:

- Record their belief regarding candidate ability/competency as either:
 - Pass Competent = Yes
 - Not Yet Competent = No
 - Unsure about whether candidate is competent or not = Not Sure
- Meet briefly with the assessor to discuss and/or clarify the form.

This source of evidence combines with other forms of assessment to assist in determining the 'Pass Competent' or 'Not Yet Competent' decision for the candidate.

A separate Third Party Statement is required for each Competency Unit undertaken by the candidate.

Competency standard

UNIT TITLE: MANAGE CONTRACTUAL AGREEMENTS/COMMITMENTS		NOMINAL HOURS: 50
UNIT NUMBER: D2.TFA.CL7.04		
UNIT DESCRIPTOR: This unit deals with skills and knowledge required to manage agreements and/or commitments and arrangements with businesses where a legally binding contract exists.		
ELEMENTS AND PERFORMANCE CRITERIA		UNIT VARIABLE AND ASSESSMENT GUIDE
Element 1: Establish contractual agreements/commitments management strategies 1.1 Re-confirm contract requirements with all parties for all <i>contractual agreements/commitments</i> 1.2 <i>Establish effective communication and information strategies</i> for all contractual agreements/commitments 1.3 <i>Confirm and implement start-up or transition arrangements</i> for all contractual agreements/commitments 1.4 Document <i>management strategy</i> for the life of individual contractual agreements/commitments 1.5 Monitor application of the identified management strategies 1.6 Adapt documented management strategies as required		Unit Variables The Unit Variables provide advice to interpret the scope and context of this unit of competence, allowing for differences between enterprises and workplaces. It relates to the unit as a whole and facilitates holistic assessment This unit applies to all industry sectors that establish contractual arrangements and/or commitments with other organisations that may include suppliers, providers, carriers and other agencies within the labour divisions of the hotel and travel industries and may include: 1. Travel Agencies 2. Tour Operation <i>Contractual agreements/commitments</i> may be related to: • Contracts • Memoranda of understanding/ memoranda of agreement • In-house option directives • Common use arrangements/standing offers • Inter/intra-government agreements • Letters of intent • Licensing.

Element 2: Monitor and maintain the performance of contractual agreements/commitments 2.1 Manage relationship with contractors in accordance with <i>organisational policies and procedures</i> 2.2 <i>Monitor performance</i> of all contractual agreements/commitments 2.3 Meet <i>obligations to contractors</i> 2.4 Identify and manage emerging <i>risks</i> throughout the life of all contractual agreements/commitments 2.5 Identify <i>contract variations</i> 2.6 <i>Manage contract variations</i> 2.7 Investigate, <i>resolve disputes</i>, or refer <i>disputes/complaints</i> 2.8 <i>Negotiate issues</i> relating to contractual agreements/commitments 2.9 <i>Maintain communication</i> on the performance of the contractual agreements/commitments 2.10 <i>Maintain information</i> relating to contractual agreements/commitments	<i>Establish effective communication and information strategies</i> may include: • Sharing of information • Scheduling regular contacts to talk, meet or check on progress • Exchanging contact details • Identifying primary/sole contacts within the organisation • Undertaking to cooperate and work in good faith with other parties • Protocols for dealing with other stakeholders • Emergency contact arrangements • A diary system to monitor milestones, timeframes, receipt of deliverables and other • Strategies for ensuring information flow at critical stages of the contract. <i>Confirm and implement start-up or transition arrangements</i> may be related to: • Identifying initial payment terms, timelines and conditions • Identifying compliance requirements and time allowances/tolerances for compliance in the first instance • Determining contacts within supplier organisations and others to facilitate transitions arrangements and provide support • Clarifying documentation to be completed. <i>Management strategy</i> may include: • Formal contract management plan • Setting up routines • Checking quality assurance systems • Transfer of legal responsibility • Insurances
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Element 3: Complete contractual agreements/commitments and implement review strategies 3.1 Finalise contractual agreements/commitments 3.2 Apply management strategies to contractual agreements/commitments 3.3 Review strategies used to manage contractual agreements/commitments 3.4 Document and explain variances between key performance indicators in the contractual agreements/commitments and actual outcomes 3.5 Use review information on provider performances to guide recommendations for improvements to future contractual agreements/commitments	• Avoiding the implied acceptance of varied conditions • Non-enforcement of contractual obligations. <i>Organisational policies and procedures</i> may include: • Key performance criteria • Authorisation for nominated actions, including payments, complaint, provision of data and operational information • Security, privacy and confidentiality • Scopes of authority • Authority to act, or commit, on behalf of the business • Terminate agreement/commitments. <i>Monitor performance</i> may include: • Ensuring all obligations under agreements and other arrangements are being met • Ensuring knowledge of terms and conditions of agreements, arrangements and contracts • Applying regular monitoring activities • Recording monitoring activities. <i>Obligations to contractors</i> may include: • Payments • Access to property, facilities and information • Attending scheduled meetings • Providing nominated assistances and/or supporting or supplementary services.
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	<i>Risks</i> may include: • Suppliers' inability to meet agreements • End user or buyers' inability to meet obligations • Limited number of suppliers • Applying organisational risk management procedures. <i>Contract variations</i> may arise from: • Change of scope • Negotiation of new terms and conditions • Dissolution of contracts. <i>Manage contract variations</i> should include: • Complying with the contents of the contract • Complying with organisational policies and procedures • Seeking legal advice, where appropriate • Clarifying ambiguous terms and conditions. <i>Resolve disputes</i> may include: • Conference • Negotiation • Mediation • Arbitration • Resort to contractual agreements • Legal considerations.
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	<i>Disputes/complaints</i> may include: • Requirements regarding provision of goods and services • Delivery schedules • Price changes • Additional tasking • Payment schedules • Complaints from third parties. <i>Negotiate issues</i> may include: • Negotiating contract variations • Negotiating continuous improvement • Negotiating innovations • Negotiating instances of non-compliance • Negotiating consequences arising as a result of non-compliance • Adhering to stipulations as set out in the contract/agreement. <i>Maintain communication</i> may include: • Including all stakeholders • Complying with organisational protocols and industry standards • Adhering to scheduled contact times • Attending meetings • Providing evidence to support communications.
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	<i>Maintain information</i> may include: • Addressing organisational purposes e.g. Extracting, collating and arranging relevant details in a format for reports and other documents • Storing/filing relevant documentation • Updating material that has changed • Adhering to organisational policies and procedures • Notifying relevant others of changes. <i>Finalise contractual agreements/commitments</i> may include: • Cancelling a contractual agreement/commitment • Terminating a contractual agreement/commitment • Complying with contractual agreements • Seeking legal advice • Providing the supplier and other stakeholders with appropriate prior notice of intention. <i>Management strategies</i> may apply to: • Close-out • Renewal of the contractual agreements/commitments • Transition arrangements to a new contract. <i>Strategies used</i> may relate to: • Contract management • Supplier performance • Stages of the contract • Satisfaction levels
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- | | |
|--|--|
| | <ul style="list-style-type: none">• Audit results• 360° feedback. <p><i>Key performance indicators</i> may include:</p> <ul style="list-style-type: none">• Timelines and dates for delivery• Service provided• Level of compliance with promises made• Product and service quality• Prices• Ease of dealing with the business• Willingness of the business to meet emerging needs• Willingness of the business to help address individual organisational problems. <p><i>Use review information</i> may include evaluations relating to:</p> <ul style="list-style-type: none">• The planning process• Procurement• Sources and methods of gathering data• Role of audit trails• Measuring outputs• Meeting client needs• Innovation• Strategies for continuous improvement. |
|--|--|

	Assessment Guide The following skills and knowledge must be assessed as part of this unit: • The enterprise's policies and procedures in regard to entering into and managing contractual agreements/commitments • Knowledge of the legal elements of contract, including detailed knowledge of terms and conditions, warranties and guarantees, exclusion clauses, ways to discharge a contract and remedies available to address failure to perform • Principles of contract negotiation and ability to use negotiation techniques • Knowledge of host country legal issues relating to contracts • Principles of financial management • Knowledge of privacy, security and commercial-in-confidence issues • Knowledge of suppliers, providers and carriers, including their standard contractual terms and conditions. Linkages To Other Units • Access and retrieve computer-based data • Work effectively with colleagues and customers • Prepare tenders for catering contracts • Apply catering control principles and procedures • Establish and maintain a business relationship • Plan and establish systems and procedures • Work cooperatively in a general administration environment • Maintain financial standards and records • Manage financial performance within a budget
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- Manage legal requirements for business compliance
- Prepare and submit quotations
- Manage and control operational costs
- Prepare and monitor budgets.

Critical Aspects of Assessment

Evidence of the following is essential:

- Understanding of host enterprise policies and procedures in regard to entering into and managing contractual agreements/commitments
- Demonstrated ability to prepare detailed written strategies to enable effective management and monitoring of nominated contractual agreements/commitments
- Demonstrated ability to respond effectively and legally to at least six real or simulated variations in contract performance by nominated suppliers, providers or carriers
- Demonstrated ability to identify the legal obligations that flow to all parties as a result of a nominated real or simulated contractual agreement/commitment
- Demonstrated ability to generate a viable and effective review process to evaluate a nominated real or simulated contractual agreement/commitment with a supplier, provider or carrier.

Context of Assessment

This unit may be assessed on or off the job:

- Assessment should include practical demonstration either in the workplace or through a simulation activity, supported by a range of methods to assess underpinning knowledge
- Assessment must relate to the individual's work area or area of responsibility.

	Resource Implications Training and assessment to include access to a real or simulated workplace; and access to workplace standards, procedures, policies, guidelines, tools and equipment. Assessment Methods The following methods may be used to assess competency for this unit: • Case studies • Observation of practical candidate performance • Oral and written questions • Analysis of a portfolio of evidence, including sample contracts, amendments to contracts, terms and conditions, reviews and evaluations • Problem solving • Role plays including negotiation of prices, terms and conditions and other factors • Third party reports completed by a supervisor • Project and assignment work. Key Competencies in this Unit <i>Level 1 = competence to undertake tasks effectively</i> <i>Level 2 = competence to manage tasks</i> <i>Level 3 = competence to use concepts for evaluating</i>
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	Key Competencies	Level	Examples
	Collecting, organising and analysing information	3	Capture information to use as the basis of a review process
	Communicating ideas and information	3	Negotiate amendments to, or renewal of, contractual agreements/commitments
	Planning and organising activities	3	Monitor compliance with terms and conditions of contractual agreements/commitments
	Working with others and in teams	3	Seek feedback on the operation of contractual agreements/commitments
	Using mathematical ideas and techniques	2	Calculate costs and benefits associated with contractual agreements/commitments
	Solving problems	3	Resolve instances of non-compliance with requirements of contractual agreements / commitments
	Using technology	2	Use software package to generate and record information relating to contractual agreements/commitments

Oral questions

Student name	
Assessor name	
Location/venue	
Unit of competency	Manage contractual agreements/commitments D2.TFA.CL7.04
Instructions	1. Ask student questions from the attached list to confirm knowledge, as necessary 2. Place tick in boxes to reflect student achievement (Pass Competent 'PC' or Not Yet Competent 'NYC') 3. Write short-form student answer in the space provided for each question.

Questions	Response	
	PC	NYC
1. Give me an example of a situation where you have re-confirmed contract requirements with other parties for a contractual agreement/commitment.	☐	☐
2. Describe an example of effective communication and information strategies you have developed in relation to contractual agreements/commitments you have managed.	☐	☐

Questions	Response	
	PC	NYC
3. Tell me about a situation where you have confirmed and/or implemented start-up or transition arrangements for a contractual agreement/commitment: what was the situation? What were the arrangements?	☐	☐
4. Describe a management strategy you have developed for a contractual agreement/commitment.	☐	☐
5. How did you monitor application of the management strategy you referred to in your previous answer?	☐	☐

Questions	Response	
	PC	NYC
6. Use an actual example to illustrate how you adapted a documented management strategy for a contractual agreement/commitment to respond to 'issues arising'.	☐	☐
7. Describe two examples of organisational policies and procedures used to manage the contractual agreement/commitment relationship with contractors.	☐	☐
8. Explain how you have monitored the performance of contractual agreements/commitments.	☐	☐

Questions	Response	
	PC	NYC
9. Give me three examples of obligations to contractors you have had to meet when managing contractual agreements/commitments.	☐	☐
10. Describe two risks you identified and handled throughout the life of contractual agreements/commitments you managed.	☐	☐
11. Tell me about three contract variations you identified while managing contractual agreements/commitments: how did you identify them?	☐	☐

Questions	Response	
	PC	NYC
12. For the three variations identified in your answer to the previous question, what did you do to manage them?	☐	☐
13. Illustrate with reference to an actual example how you investigated and resolved a dispute/issue/complaint in relation to the performance of a contract/agreement you were managing.	☐	☐
14. Describe a situation where you successfully negotiated a solution to a problem with the performance of a contract/agreement you were managing.	☐	☐

Questions	Response	
	PC	NYC
15. When managing the performance of contracts/agreements, who did you maintain communication with regarding those contracts/agreements and how did the communication occur?	☐	☐
16. With reference to your answer to the previous question, what information did you share with those people and why was there a need to do so?	☐	☐
17. Identify a contractual agreement/commitment you managed and describe what was involved in finalising this agreement/commitment.	☐	☐

Questions	Response	
	PC	NYC
18. Give me two examples of management strategies you used when completing contractual agreements/commitments explaining why you applied each one.	☐	☐
19. Describe the action you took to review a management strategy at the conclusion of a contractual agreement/commitment identifying those involved and the findings of the review.	☐	☐
20. With reference to a contractual agreement/commitment you have managed identify two variations you detected between KPIs and actual outcomes explaining why the variations occurred and what action was taken in response.	☐	☐

Questions	Response	
	PC	NYC
21. With reference to a contract/agreement explain how you used review information on that arrangement to benefit future management of contractual agreements/commitments.	☐	☐

Written questions

Manage contractual agreements/commitments – D2.TFA.CL7.04

Student Name: _____

Answer all the following questions and submit to your Trainer.

1. Identify and briefly describe the stages in a contract life cycle.

2. In your own words define 'a contract'.

3. Give four reasons it is important for an organisation to maintain contractual arrangements which have been negotiated and/or agreed to.

4. In your own words explain what is meant by a CUA.

5. Describe four ways to re-confirm contractual requirements which apply in relation to agreements and commitments.

6. List five topics which indicate the role of the communication strategy in relation to a contractual agreement/commitment that has to be managed.

7. Give five points which show the role of the information strategy in relation to a contractual agreement/commitment that has to be managed.

8. Give six reasons it is important to have effective communication and information strategies for contractual agreements/commitments that have to be managed.

9. What is the generic difference between 'start-up- and 'transitional' arrangements for a contract?

10. Give four examples of start-up or transitional arrangements that may apply to a contractual agreement/commitment.

11. Answer 'True' or 'False' to the following: 'The contract management strategy is an internal mechanism'.

12. Give two reasons the contract management strategy needs to be documented.

13. What is a 'contract register'?

14. List six possible inclusions in a contract management strategy.

15. Present three reasons there is a need to monitor the implementation and application of contract management strategies.

16. Give three practical and effective ways to monitor contract management strategies.

17. Not all changes to documented contract management strategies need to be documented: discuss.

18. List four actions which may be inherent in changing the documented contract management strategy for an agreement.

19. Answer 'True' or 'False' to the following: 'All contractual agreements/commitments need to be actively managed'.

20. Name four skills necessary to support the 'personal' nature of many business relationships.

21. List four factors which should characterise the management of all contractual relationships.

22. Give three reasons an organisation will prepare a suite of protocols which, when combined, provide direction and advice for those with responsibilities for dealing with contracts.

23. List four examples of protocols an organisation might develop for managing contractual agreements/commitments.

24. Write three reasons it is important to monitor the performance of contractual agreements/commitments.

25. What are the three general objectives when monitoring the performance of contractual agreements/commitments?

26. List three activities that will help ensure objectives in agreements/contracts are being achieved.

27. Identify four examples of subsidiary obligations which may arise under a contractual agreement/commitment.

28. What are the three steps in risk management?

29. Identify a risk that may be encountered as part of the management of a contract and describe how it may be effectively treated/controlled.

30. What is a 'contract variation'?

31. Give four ways to identify the need for a contract variation.

32. Describe three actions inherent in dealing with contract variations when managing a contract.

33. List four generic causes of contractual disputes, complaints or issues.

34. Give four considerations and actions which should characterise the handling of disputes, complaints or issues.

35. Identify four keys in determining the actual response of an organisation to disputes, complaints or issues under a contract.

36. Is the preferred option for handling contract disputes and issues to resolve these issues in-house, between the parties or to refer them for external resolution?

37. Differentiate between 'mediation' and 'arbitration' as ways of resolving contract issues.

38. Define 'negotiation' identifying four factors implicit in the activity.

39. Describe four essentials in any negotiating situation.

40. List four strategies necessary to maintain communication in relation to the execution and performance of agreements/commitments.

41. List the three most common reasons/needs to file contract documents.

42. Present four examples of standard industry practice in relation to maintaining information relating to contractual agreements/commitments.

43. Name six documents which may need to be included as part of the maintenance process for original contractual agreements/commitments.

44. What is the most common way of completing a contract?

45. Describe four activities which may be part of organisational close-out procedures when a contract/agreement concludes.

46. Give four reasons contractual agreements/commitments need to be reviewed.

47. Provide four keys when undertaking a review of contractual agreements/commitments.

48. List four activities in the review process for contractual agreements/commitments.

49. Identify four reasons variances in contracts need to be documented.

50. Provide four keys in the process of considering variances when reviewing contracts/agreements.

51. What are the two main generic topics to be considered when reviewing information on provider performance at the end of a contractual agreement?

Answers to written questions

Manage contractual agreements/commitments – D2.TFA.CL7.04

The following are model answers only – Trainers/Assessors must use discretion when determining whether or not an answer provided by a Student is acceptable or not.

1. Identify and briefly describe the stages in a contract life cycle.

- Initiation – where the need for a contract/agreement is identified and suitable people/organisations to enter into a relationship with are identified
- Negotiation – where parties enter into discussions and the terms and conditions of the arrangements are determined
- Execution – where the formal document is prepared and signed and becomes binding on all parties
- Management – where the contract is implemented, administered and monitored and there is a need to ensure all promises made by all parties are delivered/discharged according to the arrangement which has been agreed to
- Finalisation – where the contract is completed or closed out and action is taken to review and analyse the arrangement with a view to possible renewal.

2. In your own words define 'a contract'.

A contract may be defined as:

- A legally enforceable agreement, or
- An agreement between two parties where obligations are created which are enforceable by law.

3. Give four reasons it is important for an organisation to maintain contractual arrangements which have been negotiated and/or agreed to.

- Preserve a positive and credible reputation for the organisation within the business community
- Sustain the organisational image with customers and the general community
- Give certainty to business and the promises which have been made within the business environment
- Avoid being sued by other parties for breach of contract – which may result in the organisation being:
 - Ordered to pay damages
 - Forced by the Courts to discharge nominated actions.
- Conduct the business in an expected and structured manner that has been agreed to by management of the organisation
- Ensure all legal obligations are/can be discharged as agreed/expected.

4. In your own words explain what is meant by a CUA.

- Common use arrangement – this is a standing offer arrangement for the provision of specific goods or services commonly used within the organisation
- CUAs are aggregated supply arrangements that enable a business to source goods or services for which they have a need on an ongoing basis
- The CUA will prescribe prices to be charged for the period to which the arrangement applies, supply parameters, access and delivery as well as standard terms and conditions applying to the arrangement such as payment for what is provided
- Where a CUA has been established, the organisation *must* purchase under it in accordance with the agreement.

5. Describe four ways to re-confirm contractual requirements which apply in relation to agreements and commitments.

- Obtain and read copies of all documentation
- Talk to those who were involved in developing and/or negotiating the agreements
- Speak to legal advisers
- Discuss the agreements with management who are currently working with them
- Talk with other interested parties.

6. List five topics which indicate the role of the communication strategy in relation to a contractual agreement/commitment that has to be managed.

- Identify the stakeholders in relation to a contractual agreement/commitment
- Provide contact details of all stakeholders
- Describe stakeholders role in the arrangement
- Detail preferred communication options for each stakeholder
- List preferred times for contact to occur
- Identify those who have responsibility for communicating with stakeholders
- Prescribe and/or provide sample templates or scripts to use in the communication process – to enable standardised, logical, acceptable and easy-to-use and follow communication
- Identify resources available to support the communication process – so it is effective and efficient.

7. Give five points which show the role of the information strategy in relation to a contractual agreement/commitment that has to be managed.

- Facilitate sharing of information between stakeholders
- Provide a mechanism through which information is stored
- Allow a means by which stakeholders can access relevant information
- Manage data and information
- Classify/categorise data and information into suitable sections for reference and/or analysis
- Underpin operational decisions and actions
- Enable reporting required under the contractual agreement/commitment.

8. Give six reasons it is important to have effective communication and information strategies for contractual agreements/commitments that have to be managed.

- Demonstrate transparency in the way the agreement is being managed
- Avoid confusion and/or gaps in knowledge
- Show a willingness to be engaged with the agreement
- Facilitate cooperation of others in the relationship
- Provide established and agreed channels of communication
- Share relevant and allied information
- Provide the basis for scheduling regular contacts –
- Establish protocols for dealing effectively with other stakeholders
- Provide emergency contact arrangements
- Establish a diary system (paper-based or electronic)
- Ensure information flow occurs at nominated, critical stages of the contract.

9. What is the generic difference between ‘start-up- and ‘transitional’ arrangements for a contract?

- Start-up arrangements can be seen as the requirements that apply to the implementation of a new contract/agreement that has not been entered into before
- Transition arrangements can be seen as the requirements that apply to the operation/management of a contract/agreement that has previously been in operation, but has changed in some respect.

10. Give four examples of start-up or transitional arrangements that may apply to a contractual agreement/commitment.

- Identification of initial payments required
- Provision of required, agreed or necessary physical, financial, human and other resources
- Statement from management giving in-principle support on behalf of the organisation towards the agreement
- Designation of roles and attached responsibilities
- Creation or revision of scopes of authority attaching to nominated roles
- Development of protocols to enable management of issues
- Identification of contract/agreement specifics
- Determination and establishment of contacts within organisations/stakeholders
- Clarification of documentation to be completed.

11. Answer 'True' or 'False' to the following: 'The contract management strategy is an internal mechanism'.

True

12. Give two reasons the contract management strategy needs to be documented.

- The process of developing a management strategy is formalised – and undertaken in a structured and formal way
- It can be shared with others within the organisation so they can use/follow it as and when needed
- There is certainty about what is entailed in the intended and agreed actions
- Evidence is generated regarding rationale/s and deliberations which formed the thinking that underpinned the decision to be part of the contract.

13. What is a 'contract register'?

A place to centralise all the agreements, arrangements and contracts an organisation has entered into to help with meeting:

- Accountability requirements
- Financial payments
- Reporting schedules
- Delivery timelines.

14. List six possible inclusions in a contract management strategy.

- Risk management
- Activities which will be applied to managing the agreement/commitment throughout the entire life/all stages of the contract
- Protocols to ensure effective and compliant implementation
- Actions required to effectively administer the agreement
- Relationship management
- Governance issues related to the arrangement.

15. Present three reasons there is a need to monitor the implementation and application of contract management strategies.

- Determine the effectiveness and appropriateness of the contract management strategy to the individual nature of the contract
- Demonstrate to management of the organisation the professionalism being shown by the person who has responsibility for handling the contract
- Demonstrate to the other party/parties that the contract is being actively monitored
- Help the organisation meet its obligations under the agreement
- Ensure the other party/parties perform their obligations under the agreement
- Use them as intended when problems arise in the relationship
- Provide objective data in relation to the agreement.

16. Give three practical and effective ways to monitor contract management strategies.

- Undertaking scheduled reviews of the situation and circumstances which are at the heart of the agreement
- Talking with the other party/parties on a regular basis
- Talking with stakeholders
- Determining the reality of the arrangement.

17. Not all changes to documented contract management strategies need to be documented: discuss.

Answer should/could address:

- Not every contract management strategy which has been deemed to be ineffective will necessarily be adapted in the life of the contract. For example:
 - Where an issue is small (in terms of its impact and/or financial implications) and/or has been identified towards the very end of the contract it may be ignored until negotiations for the subsequent contract take place
 - In a valued, trusted and mutually beneficial arrangement simply raising an issue verbally and agreeing to change may suffice, as opposed to resorting to changes to a documented management strategy. This can be the reality of many business relationships even though they carry legal weight and have significant importance to all concerned.

18. List four actions which may be inherent in changing the documented contract management strategy for an agreement.

- Review the existing contract management strategy
- Talk to others who have been involved in managing the contract
- Talk to the other party/parties
- Prepare a draft revision of the original contract management strategy
- Circulate the draft revision internally to management, administration and relevant other internal departments
- Revise the draft on the basis of feedback and comments – if necessary
- Confirm the revised version of the current operational contract management strategy for the agreement under consideration – by:
- Implement the revised contract management strategy as planned.

19. Answer 'True' or 'False' to the following: 'All contractual agreements/commitments need to be actively managed'.

True

20. Name four skills necessary to support the 'personal' nature of many business relationships.

- Communication skills
- Interpersonal skills
- Social skills
- Negotiation skills
- Problem solving skills.

- 21. List four factors which should characterise the management of all contractual relationships.**
- Probity
 - Good faith
 - Cooperation
 - Mutual respect and understanding
 - Ethical conduct.
- 22. Give three reasons an organisation will prepare a suite of protocols which, when combined, provide direction and advice for those with responsibilities for dealing with contracts.**
- Adequate operational and administrative oversight of the contracts
 - Consistency in the way the organisation discharges its contractual obligations. handles its agreements and deals with stakeholders/other parties
 - Preventative action to be taken when a new threat or altered risk presents itself as an element/factor in the arrangement
 - Corrective action to be taken when non-performance, sub-standard performance or incomplete is identified.
- 23. List four examples of protocols an organisation might develop for managing contractual agreements/commitments.**
- Establishment of a contract management or review committee
 - Key performance criteria
 - Authorisation/s for nominated actions in relation to the agreement
 - Communication with internal and external stakeholders and other parties
 - Reporting
 - Security, privacy and confidentiality
 - Documentation of contractual arrangements.
- 24. Write three reasons it is important to monitor the performance of contractual agreements/commitments.**
- Ensure the organisation receives all the benefits it is entitled to
 - Ensure the organisation delivers all the products, services and/or payments it is contracted to provide
 - Address issues arising as soon as they are detected.

25. What are the three general objectives when monitoring the performance of contractual agreements/commitments?

All activities involved in the management/administration of a contract need to be aimed at ensuring all obligations imposed are being met:

- By all parties
- When/by the dates promised
- As/to the standard promised.

26. List three activities that will help ensure objectives in agreements/contracts are being achieved.

- Inspecting work performed
- Checking payments made
- Communicating regularly (by email, phone or in-person) with other parties
- Considering the level of satisfaction the organisation has with what has happened.

27. Identify four examples of subsidiary obligations which may arise under a contractual agreement/commitment.

- Grant access
- Share or provide information
- Attend meetings
- Provide additional help to the contractor
- Take action to mitigate any negative impacts on the discharge/performance of the contract.

28. What are the three steps in risk management?

- Risk identification
- Risk analysis
- Risk control.

29. Identify a risk that may be encountered as part of the management of a contract and describe how it may be effectively treated/controlled.

No model answer.

30. What is a 'contract variation'?

Is any change/amendment to an existing contract or agreement – which alters the initial:

- Terms of the arrangement
- Conditions of the arrangement

31. Give four ways to identify the need for a contract variation.

- As a result of direct request from another party to the agreement
- As a consequence of monitoring the general environment
- From activities involved in monitoring matters which are specific to whatever is the focus of the existing agreement
- Due to issues and problems arising out of the discharge and performance of the contract to-date
- Because of accidents, incidents, unavoidable events and unforeseeable circumstances
- As a result of checks and inspections which have been carried out on work performed under the contract
- Following discussions (as distinct to formal requests) with stakeholders/other parties
- When another party exercises their right to invoke a variation clause which was included in the original document
- If there are changes to legislation which impact on the work to be done and/or the services to be provided under the contract
- In the event new market research data emerges, legitimate stakeholder feedback is received and/or new or revised trends relating to the purposed/intent of the contract have been identified.

32. Describe three actions inherent in dealing with contract variations when managing a contract.

- Comply with the contents of the contract
- Comply with organisational policies and procedures when there is a need to consider a contract variation
- Seek advice from others, where appropriate
- Clarify the proposed contract variations
- Dissolve existing contracts.

33. List four generic causes of contractual disputes, complaints or issues.

- Requirements regarding provision of goods and services
- Schedules
- Price changes
- Additional tasking
- Complaints from third parties
- Frustration.

34. Give four considerations and actions which should characterise the handling of disputes, complaints or issues.

- Respond promptly
- Communicate well
- Act ethically
- Focus on the long-term relationship
- Demonstrate a willingness to negotiate.

35. Identify four keys in determining the actual response of an organisation to disputes, complaints or issues under a contract.

- The size, nature and value of the contract
- The potential negative consequences for the business of not responding in an appropriate manner
- Policies and SOPs of the organisation in this regard
- The nature of the individual contract or commitment
- Previous experience (if any) in dealing with the other party.

36. Is the preferred option for handling contract disputes and issues to resolve these issues in-house, between the parties or to refer them for external resolution?

Resolve in-house, between the parties.

37. Differentiate between 'mediation' and 'arbitration' as ways of resolving contract issues.

- Mediation – occurs when a neutral third person/party manages a meeting between the parties who have the issue/problem and tries to help them arrive at a mutually agreeable solution. This may also be known as 'conciliation'
- Arbitration – takes place when a neutral third person/party listens to both sides and makes a decision all parties have agreed, in advance, will be binding on them regardless of what the decision is.

38. Define 'negotiation' identifying four factors implicit in the activity.

Negotiation can be defined as:

- 'A process in which two or more parties confront a problem and arrive at a solution which best meets the needs of all of them'.

Implicit in this is:

- Communication takes place in which approval, agreement or action is sought from someone else which may be different to what they first wanted
- Many negotiations are conducted not between groups of people but between two *individual* people representing groups/organisations
- Most negotiations result in a less than perfect solution for one, or both, sides
- Inherent in negotiation is the concept of 'give and take'
- There are definitely times in negotiations where one party will give more than normal in order to achieve some other perhaps long-term goal or related aim.

39. Describe four essentials in any negotiating situation.

- Undertaking proper preparation and research
- Finding out something out about the person with whom negotiations will be occurring
- Adopting a calm, non-emotional approach
- Staying focussed on the aims/goals and not on the person
- Ensuring excellent listening and communication skills are applied
- Knowing how to close a deal
- Obtaining agreement about what has been discussed, re-cap the salient points, and suggest the next step – this may be signing a new deal/contract, paying money, or accepting a handshake
- Being assertive – without being aggressive.

40. List four strategies necessary to maintain communication in relation to the execution and performance of agreements/commitments.

- Being proactive in the communication process
- Using the communication option identified by the other party as their preferred method of contact
- Demonstrating willingness to engage in the communication process
- Adhering to scheduled contact times
- Thanking others in the communication process
- Attending meetings
- Providing evidence to support communications.

41. List the three most common reasons/needs to file contract documents.

- For future reference – if there is a need to clarify a detail/issue or address and resolve a misunderstanding/mistake
- To facilitate the production of other similar agreements in the future – it is easier, quicker and less expensive to produce a document if there is another one on which to base it
- Compliance with legislated and general professional obligations – to maintain certain records in a given format for a nominated period.

42. Present four examples of standard industry practice in relation to maintaining information relating to contractual agreements/commitments.

- Establish a 'contract register' to manage contract documents
- Provide required facilities
- Control access to these documents
- Observe internal filing protocols
- Notify relevant others.

43. Name six documents which may need to be included as part of the maintenance process for original contractual agreements/commitments.

- Copy of the original agreement
- General supporting documentation as appropriate to the nature and value/importance of the agreement
- Name and details of management team for the contract
- Name and contact details of other parties/major stakeholders
- Relevant plans and schedules established under or for the agreement
- Contract variations
- Minutes of meetings relevant to the contract
- Receipts for monies paid
- Details of payments made
- Copies of relevant budgets
- Inspection checklists relating to work performed
- Applicable standards/criteria
- Feedback from stakeholders
- Quotations
- Reports written
- Reports received
- Distribution Lists
- Reviews and evaluations
- Photographic evidence of work performed/problems encountered
- Details of negotiations entered into during the agreement

- Tender documentation which may have attached to the agreement/contract
- Briefing notes
- Details of statements made about the agreement
- Copies of authorities/revised scopes of authorities established under the agreement by the organisation
- Complaints and compliments received
- Relevant Codes relating to the contract/agreement which must be observed
- Relevant legislation as applicable to the arrangement
- Underpinning information generated or research by the organisation which gave rise to the agreement including rationale/s for same.

44. What is the most common way of completing a contract?

Performance

45. Describe four activities which may be part of organisational close-out procedures when a contract/agreement concludes.

- Conducting checks to confirm the organisation has discharged its obligations
- Performing checks to verify other parties have performed their obligations
- Obtaining final approval (perhaps in the form of a signature)
- Holding a final meeting with other parties
- Managing identified risks which arise from the ending of the agreement
- Resolving final and/or outstanding issues
- Sharing findings with 'relevant others' as/if appropriate
- Archiving of documents.

46. Give four reasons contractual agreements/commitments need to be reviewed.

- Determine their effectiveness
- Identify lessons learned
- Work out whether a different strategy should be used next time
- Align with standard internal operational protocols
- Assist with deciding 'next step'.

47. Provide four keys when undertaking a review of contractual agreements/commitments.

- Allocate time for the work to be done
- Be honest and open
- Strive to use objective data
- Involve all relevant people
- Document the process
- Take it seriously
- Realise the *next* agreement/commitment is, to a great extent, determined by the findings of *this* review
- Focus effort on critical questions – such as finding out:
 - What worked/succeeded
 - What failed/did not succeed
 - Why.

48. List four activities in the review process for contractual agreements/commitments.

- Preparing a plan for the review process
- Obtaining 360° feedback
- Analysing contract management
- Examining supplier performance
- Undertaking a gap analysis of the agreement/commitment
- Examining costs and benefits
- Reflecting on existing data generated as part of the agreement
- Clarifying lessons learned.

49. Identify four reasons variances in contracts need to be documented.

- Provide evidence the process was undertaken
- Facilitate sharing of the information generated as a result of the process
- Enable storing of the information
- Allow recording of rationale/s behind decisions made and conclusions reached
- Conform to internal SOPs.

50. Provide four keys in the process of considering variances when reviewing contracts/agreements.

- Measure expected, anticipated, projected or promised deliverables against what actually occurred
- Take into account the things which are important to the organisation
- Look at the impact of the variance
- Seek to understand the reasons that caused all variations.

51. What are the two main generic topics to be considered when reviewing information on provider performance at the end of a contractual agreement?

- What the suppliers/providers did well
 - What they did poorly.
-

Observation checklist

Student name	
Assessor name	
Location/venue	
Unit of competency	Manage contractual agreements/commitments D2.TFA.CL7.04
Dates of observation	
Instructions	- Over a period of time observe the student completing each of the following tasks: - Establish contractual agreements/commitments management strategies - Monitor and maintain the performance of contractual agreements/commitments - Complete contractual agreements/commitments and implement review strategies - Insert element - Insert element - Enter the date on which the tasks were undertaken - Place a tick in the box to show they completed each aspect of the task to the standard expected in the enterprise - Complete the feedback sections of the form, if required.

Did the candidate	Yes	No
Element 1: Establish contractual agreements/commitments management strategies		
Re-confirm contract requirements with all parties for all contractual agreements/commitments	☐	☐
Establish effective communication and information strategies for all contractual agreements/commitments	☐	☐
Confirm and implement start-up or transition arrangements for all contractual agreements/commitments	☐	☐
Document management strategy for the life of individual contractual agreements/commitments	☐	☐
Monitor application of the identified management strategies	☐	☐
Adapt documented management strategies as required	☐	☐

Did the candidate	Yes	No
Element 2: Monitor and maintain the performance of contractual agreements/commitments		
Manage relationship with contractors in accordance with organisational policies and procedures	☐	☐
Monitor performance of all contractual agreements/commitments	☐	☐
Meet obligations to contractors	☐	☐
Identify and manage emerging risks throughout the life of all contractual agreements/commitments	☐	☐
Identify contract variations	☐	☐
Manage contract variations	☐	☐
Investigate, resolve disputes, or refer disputes/complaints	☐	☐
Negotiate issues relating to contractual agreements/commitments	☐	☐
Maintain communication on the performance of the contractual agreements/commitments	☐	☐
Maintain information relating to contractual agreements/commitments	☐	☐
Element 3: Complete contractual agreements/commitments and implement review strategies		
Finalise contractual agreements/commitments	☐	☐
Apply management strategies to contractual agreements/commitments	☐	☐
Review strategies used to manage contractual agreements/commitments	☐	☐
Document and explain variances between key performance indicators in the contractual agreements/commitments and actual outcomes	☐	☐
Use review information on provider performances to guide recommendations for improvements to future contractual agreements/commitments	☐	☐
Did the student's overall performance meet the standard?	☐	☐

Feedback to student and trainer/assessor**Strengths:****Improvements needed:****General comments:****Candidate signature****Date****Assessor signature****Date**

Third Party Statement

Student name:			
Name of third party:		Contact no:	
Relationship to student:	☐ Employer ☐ Supervisor ☐ Colleague ☐ Other Please specify: _____ <i>Please do not complete the form if you are a relative, close friend or have a conflict of interest]</i>		
Unit of competency:	Manage contractual agreements/commitments D2.TFA.CL7.04		
The student is being assessed against industry competency standards and we are seeking your support in the judgement of their competence. Please answer these questions as a record of their performance while working with you. Thank you for your time.			
Do you believe the trainee has demonstrated the following skills? <i>(tick the correct response]</i>	Yes	No	Not sure
Confirms contract//agreement requirements and establishes effective communication protocols with all parties	☐	☐	☐
Enters into contracts/agreements having developed management strategies for the duration of the contracts/agreements	☐	☐	☐
Monitors implementation of identified management strategies for contracts/agreements and adapts them as required/necessary	☐	☐	☐
Manages the relationship between all parties throughout contracts/agreements	☐	☐	☐
Monitors contract performance including meeting of obligations, risk management and the identification and management of variances	☐	☐	☐
Investigates, resolve disputes, or refers disputes/complaints	☐	☐	☐
Negotiates issues relating to contractual agreements/commitments	☐	☐	☐
Maintains required communications and information in relation to agreements/commitments	☐	☐	☐
Finalises contractual agreements/commitments applying appropriate management strategies	☐	☐	☐
Reviews management strategies and uses the findings to benefit the organisation in the future	☐	☐	☐

Comments/feedback from Third Party to Trainer/Assessor:

Third party signature:

Date:

Send to:

Competency recording sheet

Name of Student		
Name of Assessor/s		
Unit of Competency	Manage contractual agreements/commitments	D2.TFA.CL7.04
Date assessment commenced		
Date assessment finalised		
Assessment decision	Pass Competent / Not Yet Competent (Circle one)	
Follow up action required (Insert additional work and assessment required to achieve competency)		
Comments/observations by assessor/s		

Place a tick (✓) in the column to reflect evidence obtained to determine Competency of the student for each Performance Criteria.

Element & Performance Criteria	Observation of skills	3rd Party Statement	Oral Questions	Written Questions	Work Projects	Other
Element 1: Establish contractual agreements/commitments management strategies						
Re-confirm contract requirements with all parties for all contractual agreements/commitments						
Establish effective communication and information strategies for all contractual agreements/commitments						
Confirm and implement start-up or transition arrangements for all contractual agreements/commitments						
Document management strategy for the life of individual contractual agreements/commitments						
Monitor application of the identified management strategies						
Adapt documented management strategies as required						

Place a tick (✓) in the column to reflect evidence obtained to determine Competency of the student for each Performance Criteria.

Element & Performance Criteria	Observation of skills	3rd Party Statement	Oral Questions	Written Questions	Work Projects	Other
Element 2: Monitor and maintain the performance of contractual agreements/commitments						
Manage relationship with contractors in accordance with organisational policies and procedures						
Monitor performance of all contractual agreements/commitments						
Meet obligations to contractors						
Identify and manage emerging risks throughout the life of all contractual agreements/commitments						
Identify contract variations						
Manage contract variations						
Investigate, resolve disputes, or refer disputes/complaints						
Negotiate issues relating to contractual agreements/commitments						
Maintain communication on the performance of the contractual agreements/commitments						
Maintain information relating to contractual agreements/commitments						

Place a tick (✓) in the column to reflect evidence obtained to determine Competency of the student for each Performance Criteria.

Element & Performance Criteria	Observation of skills	3rd Party Statement	Oral Questions	Written Questions	Work Projects	Other
Element 3: Complete contractual agreements/commitments and implement review strategies						
Finalise contractual agreements/commitments						
Apply management strategies to contractual agreements/commitments						
Review strategies used to manage contractual agreements/commitments						
Document and explain variances between key performance indicators in the contractual agreements/commitments and actual outcomes						
Use review information on provider performances to guide recommendations for improvements to future contractual agreements/commitments						
Candidate signature:			Date:			
Assessor signature:			Date:			

